

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rosemary Espinal	Team: Team # 2	CCRB Case #: 201115778	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☒ Injury
Incident Date(s) Thursday, 09/29/2011 2:30 PM, Tuesday, 11/15/2011 12:00 AM	Location of Incident: Park Avenue and East 188th Street; 443 Cyrus Place.	18 Mo. SOL 3/29/2013	Precinct: 48		
Date/Time CV Reported Tue, 11/15/2011 2:47 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 11/15/2011 2:47 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			048 PCT
2. An officer			048 PCT
3. POM Rafael Perez	14240	930942	048 PCT
4. POM Henry Bautista	14607	929693	048 PCT
5. POF Naomi Pyles	09758	942385	048 PCT
6. POM Ramon Reyes	12332	916516	048 PCT
7. POM Hoelmy Ramos	14563	934093	048 PCT
8. POM Starlin Dominguez	02943	935169	048 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Agy Pena	02701	935484	048 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Henry Bautista	Force: On September 29, 2011, at Park Avenue and East 188th Street in the Bronx, PO Henry Bautista used physical force against § 87(2)(b)	A . Unsubstantiated
B . An officer	Discourtesy: On September 29, 2011, at Park Avenue and East 188th Street in the Bronx, an officer spoke discourteously to § 87(2)(b)	B . Officer(s) Unidentified
C . An officer	Off. Language: On September 29, 2011, at Park Avenue and East 188th Street in the Bronx, an officer made remarks to § 87(2)(b) based upon race.	C . Officer(s) Unidentified
D . An officer	Force: On September 29, 2011, at the 48th Precinct, an officer used physical force against § 87(2)(b)	D . Officer(s) Unidentified
E . POM Rafael Perez	Abuse: On September 29, 2011, at the 48th Precinct, PO Rafael Perez did not obtain medical treatment for § 87(2)(b)	E . Unsubstantiated
F . POM Starlin Dominguez	Force: On November 15, 2011, at 443 Cyrus Place in the Bronx, PO Starlin Dominguez used physical force against § 87(2)(b)	F . Unfounded

Officer(s)	Allegation	Investigator Recommendation
G . POM Hoelmy Ramos	Force: On November 15, 2011, at 443 Cyrus Place in the Bronx, PO Hoelmy Ramos used physical force against § 87(2)(b)	G . Unfounded
H . Officers § 87(4-b) § 87(2)(g)	Force: On November 15, 2011, at 443 Cyrus Place in the Bronx, officers used physical force against § 87(2)(b)	H . Unfounded
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On November 15, 2011, § 87(2)(b) called the CCRB and filed a complaint on behalf of her son, § 87(2)(b) § 87(2)(b) did not witness the incidents.

On September 29, 2011, and on November 15, 2011, § 87(2)(b) was arrested for robbery at Park Avenue and East 188th Street and at 443 Cyrus Place in the Bronx. The following allegations resulted:

- **Allegation A – Force: On September 29, 2011, at Park Avenue and East 188th Street in the Bronx, PO Henry Bautista used physical force against § 87(2)(b)**

§ 87(2)(g)

Therefore, it is recommended that **allegation A** be closed as **unsubstantiated**.

- **Allegation B – Discourtesy: On September 29, 2011, at Park Avenue and East 188th Street in the Bronx, an officer spoke discourteously to § 87(2)(b)**
- **Allegation C – Offensive Language: On September 29, 2011, at Park Avenue and East 188th Street in the Bronx, an officer made remarks to § 87(2)(b) based upon race.**
- **Allegation D – Force: On September 29, 2011, at the 48th Precinct, an officer used physical force against § 87(2)(b)**

§ 87(2)(g)

Therefore, it is recommended that **allegations B, C, and D** be closed as **Officer Unidentified**.

- **Allegation E – Abuse of Authority: On September 29, 2011, at the 48th Precinct, PO Rafael Perez did not obtain medical treatment for § 87(2)(b)**

§ 87(2)(g)

Therefore, it is recommended that **allegation E** be closed as **unsubstantiated**.

- **Allegation F – Force: On November 15, 2011, at 443 Cyrus Place in the Bronx, PO Starlin Dominguez used physical force against § 87(2)(b)**
- **Allegation G – Force: On November 15, 2011, at 443 Cyrus Place in the Bronx, PO Hoelmy Ramos used physical force against § 87(2)(b)**
- **Allegation H – Force: On November 15, 2011, at 443 Cyrus Place in the Bronx, officers used physical force against § 87(2)(b)**

§ 87(2)(g)

It is therefore recommended that **allegations F through H** be closed as **unfounded**.

40's, told § 87(2)(b) that his mother was an "asshole" and a "whore" and that § 87(2)(b) was a "filthy black." PO1 was the passenger officer in the van that transported § 87(2)(b). The operator of the van was described as a black male. When § 87(2)(b) arrived at the precinct, PO1 placed his foot in front of § 87(2)(b) when he was exiting the van, causing § 87(2)(b) to trip and hit his face against the van door. § 87(2)(b)'s braces broke as a result.

At the precinct, § 87(2)(b) requested medical attention from PO Perez but PO Perez told him he was alright. Regarding the robbery, the officers reviewed surveillance cameras which revealed that it was neither § 87(2)(b) nor § 87(2)(b) who committed the robbery. § 87(2)(b) and § 87(2)(b) were charged with § 87(2)(b) instead. The same day, § 87(2)(b) was released. After his release, § 87(2)(b) went to § 87(2)(b) and received treatment for § 87(2)(b).

November 15, 2011

On November 15, 2011, at approximately 1:24 p. m., § 87(2)(b) was walking with his friends, § 87(2)(b) and § 87(2)(b) in the vicinity of 443 Cyrus Place in the Bronx. A group of uniformed and plainclothes officers driving a marked van and a black Impala arrived on the scene and apprehended § 87(2)(b) and § 87(2)(b). § 87(2)(b) could not provide description of all of the officers on the scene, but he stated he saw PO Perez and PO Pyles from the previous incident. He also remembered seeing two other officers from the incident on September 29, 2011, whom he described as a black male and a uniformed 5'5" tall Hispanic male, who weighed approximately 290 pounds and was in his 40's.

One of the officers slammed § 87(2)(b) on the ground, several other officers kicked him in the head approximately four times and punched him by his left rib. § 87(2)(b) was not able to see the officers who kicked him and punched him. § 87(2)(b) received a head contusion. § 87(2)(b) became unconscious. When he woke up, he was in a van en route to Bronx Central Booking. § 87(2)(b) was also in the van. § 87(2)(b) and § 87(2)(b) were detained but were and released. The officers woke § 87(2)(b) with slaps in the face. § 87(2)(b) went to § 87(2)(b) on § 87(2)(b) to seek treatment for his injuries.

Attempts to Contact Civilians

§ 87(2)(b) and § 87(2)(b)

Between October 18, 2012, and January 30, 2013, four calls were placed to § 87(2)(b) to schedule a photo array and messages were left requesting a call back. On October 18, 2012, a letter was mailed to § 87(2)(b) to arrange for a photo viewing and the letter was not returned to the CCRB. On February 15, 2013, a call was placed to § 87(2)(b) and § 87(2)(b) answered the phone. § 87(2)(b) scheduled an appointment for her and § 87(2)(b) so that § 87(2)(b) could view photos on February 21, 2013. On February 21, 2013, neither § 87(2)(b) nor § 87(2)(b) appeared for their scheduled appointment and did not call to cancel. To date, neither § 87(2)(b) nor § 87(2)(b) has contacted the CCRB to reschedule their appointment.

§ 87(2)(b)

On May 8, 2012, a call was placed to § 87(2)(b) and an unidentified male who answered the phone, hung it up after the investigator asked for § 87(2)(b). On May 8, 2012, and May 15, 2012, two letters were mailed to § 87(2)(b) and the letters were not returned to the CCRB. On May 17, 2012, § 87(2)(b)'s mother, § 87(2)(b) called and stated that § 87(2)(b) had already appeared in court regarding this incident and that she did not know why the CCRB was contacting him. A message was left for § 87(2)(b) requesting a call back. On May 21, 2012, a

call was placed to § 87(2)(b) and a message was left requesting a call back. To date, § 87(2)(b) has not contacted the CCRB.

§ 87(2)(b)

On March 23, 2012, and April 12, 2012, two letters were mailed to § 87(2)(b) and the letters were not returned to the CCRB. Because § 87(2)(b)'s telephone number was not available, he could not be contacted by phone. To date, § 87(2)(b) has not responded to the letters mailed to him.

NYPD Statements:

Subject Officer: POLICE OFFICER RAFAEL PEREZ

- § 87(2)(b) –old Hispanic male, § 87(2)(b), brown hair, green eyes.
- On September 29, 2011, PO Perez worked from 9:30 a.m. to 6:05 p.m. He was assigned to robbery suppression with Sgt. Aguy Pena, PO Henri Bautista, PO Ramon Reyes, and PO Naomi Pyles. PO Perez was dressed in plainclothes and was assigned to an unmarked vehicle.
- On November 15, 2011, PO Perez worked from 8:00 a.m. to 4:35 p.m. He was assigned to a robbery suppression operation with Sgt. Aguy Pena, PO Henri Bautista, PO Ramon Reyes, and PO Naomi Pyles. PO Perez was dressed in plainclothes and was assigned to an unmarked car.

Memo Book

On September 29, 2011, at 2:40 p.m., one person under arrest at East 188th Street and Park Avenue.

On November 15, 2011, at 1:06 p.m., one person under arrest at 443 Cyrus Place, and one person under arrest in front of 448 Cyrus Place.

Complaint Report (encl. 39A-B)

§ 87(2)(a) FCT § 380.1 § 784

Photos (15A-D)

PO Perez provided the CCRB with photos taken of § 87(2)(b) at the 48th Precinct after his arrest on November 15, 2011. § 87(2)(b) was wearing a red vest and appeared to have no injuries.

CCRB Testimony

PO Rafael Perez was interviewed at the CCRB on April 17, 2012 (encl. 17A-C). On September 29, 2011, at approximately 2:30 p.m., PO Perez and his partners were making observations for a robbery suppression assignment at Fordham Plaza in the Bronx. PO Perez observed § 87(2)(b) who is a known perpetrator to PO Perez due to prior incidents, walk behind a female on the street in an attempt to steal her phone. The female had the phone in her back pocket. PO Perez walked behind § 87(2)(b) and observed him for approximately two minutes.

§ 87(2)(b) snatched the female's phone and ran away. PO Perez chased § 87(2)(b) Sgt. Pena and PO Bautista also chased § 87(2)(b)

A male bystander noticed the officers chasing after § 87(2)(b) and tackled him by throwing him against a fence at East 188th Street and Park Avenue. § 87(2)(b) attempted to get away but the bystander pulled him to the ground and sat on top of him until the officers arrived. PO Perez was still running and was approximately 30 feet away from § 87(2)(b) when he saw the bystander apprehend him. PO Perez, Sgt. Pena and PO Bautista approached § 87(2)(b) PO Perez handcuffed one of § 87(2)(b)'s hands. PO Bautista took § 87(2)(b)'s other hand from underneath his body and handcuffed him. PO Perez did not punch, kick or knee § 87(2)(b) He did not see any officer punch or kick § 87(2)(b) In addition to § 87(2)(b) there were two other teens with him, identified through the investigation as § 87(2)(b) and § 87(2)(b) who also ran away. § 87(2)(b) and § 87(2)(b) were later apprehended by PO Reyes and a female officer, identified through officer's statements as PO Naomi Pyles.

§ 87(2)(b) and § 87(2)(b) were placed under arrest and transported to the 48th Precinct. PO Perez did not know who transported § 87(2)(b) PO Perez remained at the incident location interviewing the victim and reviewing surveillance video. Later, PO Perez went to the stationhouse in a separate vehicle to process § 87(2)(b)'s arrest. PO Perez believed he had no interaction with § 87(2)(b) at the 48th Precinct. He believed he only prepared § 87(2)(b)'s arrest paperwork and another officer fingerprinted him. PO Perez did not call § 87(2)(b) a "filthy black" and did not hear any officer call him a "filthy black." PO Perez made no reference to § 87(2)(b)'s mother and did not state that she was a "whore" or an "asshole." PO Perez did not hear any officer make any obscene remarks about § 87(2)(b)'s mother. § 87(2)(b) did not request any medical attention from PO Perez. PO Perez did not see any injuries on § 87(2)(b)

November 15, 2011

On November 15, 2011, at approximately 1:06 p.m., PO Perez and his team were conducting observations at Fordham Plaza in the Bronx as part of their robbery suppression assignment. PO Perez observed § 87(2)(b) who was accompanied by another male, identified through the investigation as § 87(2)(b) snatch a phone from a female and run toward 443 Cyrus Place. § 87(2)(b) went inside 443 Cyrus Place, which is a vacant building. PO Perez and Sgt. Pena entered the location to search for § 87(2)(b) They searched floor by floor, all the way up to the roof, but did not see § 87(2)(b)

Sgt. Pena transmitted § 87(2)(b)'s description over the radio. Moments later, PO Hoelmy Ramos and PO Starlin Dominguez responded to 443 Cyrus Place. PO Ramos and PO Dominguez announced over the radio that they had apprehended § 87(2)(b) in the back of the building. § 87(2)(b) had apparently gone down a fire escape and hid underneath a mattress that was in the back of the building. PO Perez, PO Bautista and Sgt. Pena were on the roof at that time. § 87(2)(b) was placed under arrest and was transported to the 48th Precinct.

PO Perez did not know who transported § 87(2)(b) to the 48th Precinct stationhouse. PO Perez and Sgt. Pena remained on the scene speaking with the victim of the robbery. They transported her to the 48th Precinct stationhouse and prepared a report. PO Perez fingerprinted § 87(2)(b) at the precinct; he did not see any injuries on him. PO Perez took photos of § 87(2)(b) at the 48th Precinct on the day of the incident. During his CCRB testimony, PO Perez presented the photos and there were no visible injuries on § 87(2)(b). PO Perez provided one of these photos to the CCRB (encl.). § 87(2)(b) was also apprehended by other officers and brought to the 48th Precinct stationhouse. PO Perez believed § 87(2)(b) was released shortly after. PO Perez did not see any officer use any physical force against § 87(2)(b) or § 87(2)(b). PO Perez did not slap § 87(2)(b) in the face. Officers from the Detective Squad debriefed § 87(2)(b) and he confessed to the crime.

Subject Officer: POLICE OFFICER HENRY BAUTISTA

- § 87(2)(b) -old Hispanic male, § 87(2)(b), black hair, brown eyes.
- On September 29, 2011, PO Bautista worked from 9:30 a.m. to 6:05 p.m. He was assigned to conditions with PO Rafael Perez, Sgt. Agy Pena, PO Ramon Reyes, and PO Naomi Pyles. PO Bautista was dressed in plainclothes and was assigned to an unmarked vehicle.
- On November 15, 2011, PO Bautista worked from 8:00 a.m. to 4:35 p.m. He was assigned to a robbery reduction operation with PO Rafael Perez, Sgt. Agy Pena, PO Ramon Reyes, and PO Naomi Pyles. PO Bautista was dressed in plainclothes and was assigned to an unmarked vehicle.

Memo Book

PO Bautista had no memo book entries related to the incidents.

CCRB Testimony

PO Henry Bautista was interviewed at the CCRB on May 30, 2012 (encl. 20A-C). § 87(2)(g)

PO Bautista stated that Fordham Plaza is home to multiple businesses and is considered a business district. The officers were conducting the operation due to numerous cell phone robberies reported in the area.

On September 29, 2011, § 87(2)(b) attempted to steal a cell phone from a female but the female walked into a Best Buy store. § 87(2)(b) and § 87(2)(b) backed off of her. PO Bautista went inside the Best Buy to alert the female. Approximately a minute later, PO Bautista heard a commotion over his radio of officers stating that a perpetrator was running and that there was a foot pursuit. PO Bautista exited from the Best Buy and saw PO Perez running after an individual. PO Bautista ran toward PO Perez, who was approximately one block ahead of him. When PO Bautista caught up with PO Perez, PO Perez had § 87(2)(b) in custody and handcuffed at East 188th Street and Park Avenue.

§ 87(2)(b) was handcuffed and was standing up when PO Bautista approached. PO Bautista did not see PO Perez or Sgt. Pena use any physical force against § 87(2)(b). PO Bautista did not see any injuries on § 87(2)(b). PO Bautista did not have any physical contact with § 87(2)(b).

PO Bautista, PO Perez and Sgt. Pena went to a security office located nearby at One Fordham Plaza to review surveillance video of the incident. PO Bautista remained there for approximately a half hour. He then went to Best Buy to speak with the complainant/victim in the incident.

PO Bautista later learned that PO Reyes apprehended § 87(2)(b) at another location. PO Bautista did not witness the apprehension of § 87(2)(b). PO Bautista did not know who transported § 87(2)(b) and § 87(2)(b) to the stationhouse. PO Bautista did not hear any officer

state to § 87(2)(b) that his mother was a “whore” and “asshole.” He did not hear any officer tell § 87(2)(b) that he was a “filthy black.” PO Bautista went to the 48th Precinct. He believed he arrived there approximately half hour after § 87(2)(b) arrived. PO Bautista had no interaction with § 87(2)(b) at the stationhouse.

November 15, 2011

PO Bautista confirmed PO Perez’ observation of § 87(2)(b) on November 15, 2011. PO Bautista, PO Perez and Sgt. Pena ran after § 87(2)(b). The officers searched 443 Cyrus Place but did not see § 87(2)(b). PO Bautista heard over his radio that other officers had apprehended § 87(2)(b) outside of the building. PO Bautista was on the roof at the time and did not see § 87(2)(b) s apprehension. PO Bautista did not know who apprehended § 87(2)(b).

PO Bautista did not have interaction with § 87(2)(b). § 87(2)(b) did not make any statements to him or appear to be injured. PO Bautista did not recall seeing PO Dominguez or PO Ramos on the scene. PO Bautista did not recall whether any other males were apprehended.

Witness Officer: SERGEANT AGY PENA

- § 87(2)(b) -old Hispanic female, § 87(2)(b), black hair, brown eyes.
- On September 29, 2011, Sgt. Pena worked from 9:00 a.m. to 5:57 p.m. She was assigned to a robbery suppression operation with PO Rafael Perez. Sgt. Pena was dressed in plainclothes and worked on foot.
- On November 15, 2011, Sgt. Pena worked from 8:00 a.m. to 4:57 p.m. She was the business district sergeant. Sgt. Pena worked with PO Rafael Perez and PO Henry Bautista. Sgt. Pena was dressed in plainclothes and was assigned to an unmarked vehicle, # 171.

Memo Book

On September 29, 2011, at 2:35 p.m., one under by PO Perez for § 87(2)(a). At 2:40 p.m., one under by PO Perez for § 87(2)(a). Both perpetrators are juvenile delinquents. At 3:00 p.m., mother of § 87(2)(b) § 87(2)(b) was notified. Mother of § 87(2)(b) § 87(2)(b) was notified. At 4:00 p.m., mothers present at the stationhouse. At 5:50 p.m., both juvenile delinquents were released to parent. § 87(2)(b)

On November 15, 2011, at 12:00 p.m., set at One Fordham Plaza. At 1:26 p.m., two people were arrested at 443 Cyrus Place for robbery, § 87(2)(b) and § 87(2)(b). At 2:35 p.m., voided arrest for § 87(2)(b) § 87(2)(b) complainant/victim had the wrong identification. At 4:00 p.m., prepared vouchers for arrests. At 6:00 p.m., prepared paperwork for § 87(2)(b)

CCRB Testimony

Sgt. Pena was interviewed at the CCRB on May 27, 2012 (encl. 32A-C). § 87(2)(g)

Sgt. Pena confirmed PO Perez’ observation of § 87(2)(b) on September 29, 2011. When the bystander apprehended § 87(2)(b) § 87(2)(b) began to kick his legs and fought with the bystander. § 87(2)(b) refused to be handcuffed. Sgt. Pena did not see any officer punch § 87(2)(b) § 87(2)(b) was eventually handcuffed and lifted from the ground. § 87(2)(b) did not appear to be injured. Sgt. Pena did not recall who transported § 87(2)(b). Sgt. Pena did not hear any officer state to § 87(2)(b) that his mother was an “asshole.”

Sgt. Pena did not witness § 87(2)(b)'s apprehension. Sgt. Pena requested a vehicle to the scene to transport § 87(2)(b) to the 48th Precinct. He was transported in an unmarked car, # 5105. Sgt. Pena went to the stationhouse approximately 25 minutes after the incident given that she first went to review surveillance footage near the incident location. Sgt. Pena did not have any interaction with § 87(2)(b) at the precinct. Sgt. Pena did not hear any officer tell § 87(2)(b) that he was a "filthy black." Sgt. Pena did not know whether § 87(2)(b)'s braces broke. § 87(2)(b) and § 87(2)(b) were released the same day to their parents.

November 15, 2011

Sgt. Pena confirmed PO Perez's observation of § 87(2)(b) on November 15, 2011. § 87(2)(b) was with a group of teens going back and forth across the street looking for victims to target. § 87(2)(b) and his friends spotted a woman with a child crossing the street. The female was holding a cell phone in her hand. § 87(2)(b) went up behind the female, by himself, grabbed the female by the hair and forcefully snatched the phone out of her hand. § 87(2)(b) ran along Cyrus Place.

Multiple units responded to 443 Cyrus Place as back up. While on the roof of the location, a conditions sergeant, Sgt. Israel Sanchez, relayed to Sgt. Pena that § 87(2)(b) was apprehended downstairs. Sgt. Pena did not see the apprehension of § 87(2)(b) and did not witness any physical force used against him. When Sgt. Pena arrived downstairs, § 87(2)(b) was already in a van. The victim of the robbery identified § 87(2)(b) and he was apprehended in front of the building. Sgt. Pena transported the victim to the stationhouse. § 87(2)(b) was later released given that the victim later stated that she could not recall seeing § 87(2)(b) during the incident.

Subject Officer: POLICE OFFICER NAOMI PYLES

- § 87(2)(b) -old Hispanic female, § 87(2)(b), blonde hair, green eyes.
- On September 29, 2011, PO Pyles worked from 9:00 a.m. to 5:35 p.m. She was assigned to a robbery suppression operation with PO Ramon Reyes. She was dressed in plainclothes and worked on foot.
- On November 15, 2011, PO Pyles worked from 8:00 a.m. to 4:35 p.m. She was assigned to robbery suppression with PO Reyes. She was dressed in plainclothes and was assigned to an unmarked vehicle.

Memo Book

On September 29, 2011, at 1:15 p.m., one person was arrested by PO Perez for attempted § 87(2)(a) FCT § 280.1.5.784. PO Pyles had not memo book entries for the November 15, 2011 incident.

CCRB Testimony

PO Naomi Pyles was interviewed at the CCRB on May 11, 2012 (encl. 29A-C) § 87(2)(g)

On September 29, 2011, PO Pyles and PO Reyes were posted at East 180th Street and Park Avenue and received a call from PO Bautista and PO Perez. They informed PO Pyles that § 87(2)(b) and § 87(2)(b) were walking in their direction and to stop them. When PO Pyles saw § 87(2)(b) and § 87(2)(b) they were walking briskly and looking over their shoulder. PO Pyles stopped § 87(2)(b) but § 87(2)(b) fled. PO Pyles grabbed § 87(2)(b) by one wrist and ordered him to put his hands on the wall. § 87(2)(b) complied. PO Reyes handcuffed § 87(2)(b). § 87(2)(b) was later apprehended at another location but PO Pyles did not recall who apprehended him or which officers transported him to the precinct. PO Pyles and PO Reyes transported § 87(2)(b) in a van to the 48th Precinct. When PO Pyles arrived at the 48th Precinct,

§ 87(2)(b) was already there. However, PO Pyles did not see him. PO Pyles did not see any officer use physical force or obscene language against § 87(2)(b) did not hear any officer tell § 87(2)(b) that he was a “filthy black” or that his mother was an “asshole” and a “whore.”

November 15, 2011

PO Pyles confirmed Sgt. Pena’s observations of § 87(2)(b) PO Pyles and PO Reyes followed § 87(2)(b) in their vehicle to 443 Cyrus Place. However, the officers remained inside their car because they did not want their vehicle to be recognized. PO Ramos and PO Dominguez arrived at the location as back up. Another unit arrived as well. Sgt. Pena guarded the building’s entrance to make sure no other civilians went inside. PO Pyles and PO Reyes remained in their vehicle observing from a distance. A few minutes later, PO Pyles saw § 87(2)(b) descend from the building’s fire escape. PO Pyles transmitted over her radio that § 87(2)(b) was coming down the fire escape.

Minutes later, PO Dominguez and PO Ramos, who were searching the perimeter of the building, lifted a couch that was in the back of the building and found § 87(2)(b) hiding underneath it. PO Pyles drove away from the location to protect her vehicle. She did not see what happened after § 87(2)(b) was found. PO Pyles did not see who handcuffed § 87(2)(b) and whether any physical force was used against him. PO Pyles did not see § 87(2)(b) at the stationhouse.

Subject Officer: POLICE OFFICER RAMON REYES

- § 87(2)(b) -old Hispanic male, § 87(2)(b), black hair, brown eyes.
- On September 29, 2011, PO Reyes worked from 9:30 a.m. to 6:05 p.m. He was assigned to conditions with PO Naomi Pyles. PO Reyes was dressed in plainclothes and was assigned to an unmarked motor vehicle.
- On November 15, 2011, PO Reyes worked from 8:00 p.m. to 4:35p.m. He was assigned to conditions with PO Naomi Pyles. PO Reyes was dressed in plainclothes and was assigned to an unmarked motor vehicle.

Memo Book

PO Reyes did not have memo book entries for neither incident.

CCRB Testimony

PO Ramon Reyes was interviewed at the CCRB on May 24, 2012 (encl. 35A-C). His statements are consistent with PO Pyles’ statements with the following exceptions.

When PO Reyes and PO Pyles received the phone call from PO Perez about apprehending § 87(2)(b) and § 87(2)(b) PO Reyes could see § 87(2)(b) and § 87(2)(b) approaching. PO Reyes identified himself as a police officer and detained § 87(2)(b) given that he was closer to PO Reyes. PO Reyes grabbed § 87(2)(b) by his upper arms and shoulder area. § 87(2)(b) stated that he had not done anything and asked why he was being stopped. § 87(2)(b) did not physically resist. PO Reyes told § 87(2)(b) to wait until he found out from other officers what happened. PO Pyles assisted PO Reyes in handcuffing § 87(2)(b) Neither PO Reyes nor PO Pyles slam § 87(2)(b) on the ground or knee him on his back.

PO Reyes later found out that § 87(2)(b) was apprehended by a bystander. PO Reyes did not witness § 87(2)(b)’s apprehension. PO Reyes walked § 87(2)(b) to a nearby marked police van that was parked at East 189th Street and Park Avenue for any arrests made by the team. PO Reyes did not recall the number of the van. There were no uniformed officers assigned to that van. When PO Reyes arrived at the van, § 87(2)(b) was already in the van. PO Reyes did not see any

injuries on § 87(2)(b) § 87(2)(b) made no statements. PO Reyes did not have any verbal interaction with § 87(2)(b)

After PO Reyes placed § 87(2)(b) in the van, he immediately went back to his post with PO Pyles. PO Reyes did not know who transported § 87(2)(b) and § 87(2)(b) to the precinct. PO Reyes did not hear any officer tell § 87(2)(b) that his mother was an “asshole” and a “whore.” PO Reyes did not hear any officer tell § 87(2)(b) that he was a “filthy black.”

November 15, 2011

§ 87(2)(b) jumped down from the fire escape into an alley way. PO Reyes and PO Pyles lost sight of him once he was down on the ground. PO Reyes did not see who apprehended § 87(2)(b) or how he was apprehended. PO Reyes stated there were additional officers who responded to the incident, including uniformed and plainclothes officers. PO Reyes did not know who these additional officers were. Besides § 87(2)(b) PO Reyes did not believe any other individuals were arrested for this incident. PO Reyes did not see any officer use any physical force against § 87(2)(b) § 87(2)(b)

Subject Officer: POLICE OFFICER HOELMY RAMOS

- § 87(2)(b) -old Hispanic male, § 87(2)(b), black hair, black eyes.
- On November 15, 2011, PO Ramos worked from 7:00 a.m. to 3:35 p.m. He was assigned to Street Narcotics Enforcement Unit with PO Jose Rosa and PO Jeffrey Santana. PO Ramos was dressed in plainclothes and was assigned to an unmarked vehicle.

Memo Book

PO Ramos did not have memo book entries related to this incident.

CCRB Testimony

PO Hoelmy Ramos was interviewed at the CCRB on May 10, 2012 (encl. 23A-B). PO Ramos had no involvement in the incident with § 87(2)(b) on September 29, 2011. § 87(2)(g)

On November 15, 2011, at approximately 1:30 p.m., PO Ramos was at the 48th Precinct processing an arrest when he received a radio transmission from PO Perez requesting additional units to 443 Cyrus Place. The transmission indicated that there had been a robbery involving approximately five teens. At least one other officer went to the location with PO Ramos but he did not recall whether it was PO Rosa or PO Santana.

Upon arriving at 443 Cyrus Place, PO Ramos and one other officer, whom he believed was PO Starlin Dominguez, searched for § 87(2)(b) in perimeter of the building. Other officers also searched the perimeter of the building but PO Ramos did not recall which officers.

One of the officers lifted a couch that was on the side of the building and found § 87(2)(b) hiding underneath it. § 87(2)(b) was lifted from the ground. When the officers grabbed § 87(2)(b) § 87(2)(b) § 87(2)(b) pretended to faint. PO Ramos and PO Dominguez helped search § 87(2)(b) s pockets. The stolen cell phone, which had the victim’s photo on it, was found on § 87(2)(b) PO Ramos and PO Dominguez helped handcuff § 87(2)(b) PO Ramos did not recall § 87(2)(b) being thrown on the ground. § 87(2)(b) was not punched. PO Ramos did not see any officer kick § 87(2)(b) PO Ramos did not know whether any other perpetrators involved in the robbery were apprehended for this incident. PO Ramos did not see any injuries on § 87(2)(b) § 87(2)(b) was placed inside a van and transported to the 48th Precinct stationhouse. PO Ramos did not know

who transported § 87(2)(b) PO Ramos went back to the 48th Precinct to finish processing his arrest.

Subject Officer: POLICE OFFICER STARLIN DOMINGUEZ

- § 87(2)(b) –old Hispanic male, § 87(2)(b), black hair, brown eyes.
- On November 15, 2011, PO Dominguez worked from 8:00 a.m. to 4:35 p.m. On November 15, 2011, PO Dominguez had court in the morning and returned to work at approximately 10:30 a.m. He was then assigned to conditions auto. He worked with Sgt. Israel Sanchez. PO Dominguez was assigned to a marked vehicle, # 4620.

Memo Book

PO Dominguez had no memo book entries pertaining to the incident.

CCRB Statement

PO Starlin Dominguez was interviewed at the CCRB on May 10, 2012 (encl. 26A-B). § 87(2)(g)

§ 87(2)(g) PO Dominguez had no involvement in the incident with § 87(2)(b) on September 29, 2011. On November 15, 2011, at approximately 2:30 p.m., PO Dominguez and Sgt. Sanchez were on patrol when they received a radio transmission requesting assistance at 443 Cyrus Place due to a cell phone robbery. PO Dominguez and Sgt. Sanchez responded to the location immediately.

When PO Dominguez and Sgt. Sanchez arrived at 443 Cyrus Place, Sgt. Sanchez separated from PO Dominguez and went to a different location in the building. PO Perez told PO Dominguez in front of the building that they were looking for § 87(2)(b) who is a known perpetrator to both officers due to prior arrests.

PO Dominguez helped search the building from the ground floor to the roof and the perimeter. An officer, whom PO Dominguez did not recall, lifted a couch that was outside of the building and found § 87(2)(b) hiding underneath it.

PO Dominguez and PO Ramos handcuffed § 87(2)(b). When they attempted to lift him from the ground, § 87(2)(b) pretended to faint. PO Dominguez and PO Ramos picked § 87(2)(b) and carried him to a police van. PO Dominguez rode with § 87(2)(b) to the 48th Precinct stationhouse. Sgt. Sanchez drove in his vehicle to the 48th Precinct to meet PO Dominguez there. PO Perez took over § 87(2)(b)'s arrest. PO Dominguez did not kick or punch § 87(2)(b) and did not see any officer kick or punch him. § 87(2)(b) did not resist when he was handcuffed.

Medical Records § 87(2)(b) (encl. 12A-B)

On January 10, 2012, the CCRB sent a subpoena with a HIPAA form to § 87(2)(b) requesting § 87(2)(b)'s medical records for September through November 2011. § 87(2)(b) sent the subpoena and HIPAA form back to the CCRB with a notice indicating that the hospital was not able to locate any information about § 87(2)(b).

Medical Records § 87(2)(b) (encl. 13A-T)

§ 87(2)(a) PHL § 18(6)

§ 87(2)(b) Additionally, during his CCRB statement, § 87(2)(b) stated he would provide the name and contact information for his § 87(2)(b) at a later time given that he did not have that information at the time. To date, § 87(2)(b) has not provided his § 87(2)(b) information to the CCRB.

NYPD Documents

Command Log (encl. 38A-C)

The 48th Precinct command log indicated that § 87(2)(b) and § 87(2)(b) were arrested at East 188th Street and Park Avenue for § 87(2)(a) FCT § 380.1 § 784. Their physical appearance was listed as apparently normal.

SPRINT (encl. 46A, 46G)

There were no SPRINT located for these incidents.

Desk Appearance Ticket (encl. 40)

§ 87(2)(a) FCT § 380.1 § 784

Summons/Arrest for Incident and Disposition

- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings (encl. 44).

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of April 20, 2013, with regard to these incidents

Civilians Criminal History (encl. 43A-F)

- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History (encl. 9)

- § 87(2)(b) has filed the following CCRB complaints:

- § 87(2)(b)

Subject Officers CCRB History

- PO Perez has been a member of the service for ten years and there are no substantiated CCRB allegations against him (encl. 2).
- PO Bautista has been a member of the service for ten years and there are no substantiated CCRB allegations against him (encl.3).
- PO Ramos has been a member of the service for nine years and there are no substantiated CCRB allegations against him (encl. 4).
- PO Dominguez has been a member of the service for eight years and there are no substantiated CCRB allegations against him (encl.5).
- PO Pyles has been a member of the service for six years and there are no substantiated CCRB allegations against him (encl. 7).

- PO Reyes has been a member of the service for 17 years and there are no substantiated CCRB allegations against him (encl. 6).

Conclusion

Identification of Subject Officers

PO Perez, PO Bautista, PO Ramos and PO Dominguez were identified through police documents and officer testimony. They confirmed their involvement in the incidents on September 29, 2011 and November 15, 2011.

§ 87(2)(b) stated that he was transported in a van comprised of two uniformed officers, a black male and a Hispanic male. § 87(2)(b) made allegations against the Hispanic officer in that van, who was described as a uniformed 5'5" tall Hispanic male who weighed approximately 290 pounds and was in his 40's. Sgt. Pena, PO Perez, PO Bautista, PO Ramos, PO Dominguez, PO Pyles and PO Reyes worked in plainclothes. They confirmed § 87(2)(b) was transported in a van, however, they denied transporting him and did not know who transported him. Several attempts were made to § 87(2)(b) to show him a photo array but § 87(2)(b) missed an appointment scheduled. He then failed to contact the CCRB to reschedule the appointment. Therefore, because the investigation could not identify the officers who transported § 87(2)(b) to the stationhouse, the allegations are pled to "an officer."

Allegations Not Pled

§ 87(2)(g)

§ 87(2)(g)

Investigative Findings and Recommendations

Allegation A – Force: On September 29, 2011, at Park Avenue and East 188th Street in the Bronx, PO Henry Bautista used physical force against § 87(2)(b)

§ 87(2)(g)

According to § 87(2)(b) PO Perez and PO Bautista stopped him and § 87(2)(b) and subsequently arrested them for § 87(2)(a). PO Perez allegedly grabbed § 87(2)(b) by the back of his shirt and threw him to the ground. PO Bautista kicked him in the groin. § 87(2)(b) was then handcuffed.

The officers testified that § 87(2)(b) was observed stealing a cell phone from a female. § 87(2)(b) ran and PO Perez, Sgt. Pena and PO Bautista chased him. A civilian tackled § 87(2)(b) by throwing him against a fence. § 87(2)(b) attempted to get away but the civilian pulled him to the ground and sat on top of him. When PO Perez, Sgt. Pena and PO Bautista approached, PO Perez handcuffed one of § 87(2)(b)'s hands and PO Bautista handcuffed the other. PO Perez and Sgt. Pena did not punch, kick or knee § 87(2)(b). They did not see any officer punch or kick § 87(2)(b). PO Bautista stated that when he caught up to Sgt. Pena and PO Perez, § 87(2)(b) was already in handcuffs. PO Bautista had no physical contact with § 87(2)(b). All three officers confirmed they did not see injuries on § 87(2)(b). PO Bautista did not see PO Perez or Sgt. Pena use any physical force against § 87(2)(b).

§ 87(2)(b)

It is therefore recommended that **allegation A** be closed as **unsubstantiated**.

Allegation B – Discourtesy: On September 29, 2011, at Park Avenue and East 188th Street in the Bronx, an officer spoke discourteously to § 87(2)(b)

Allegation C – Offensive Language: On September 29, 2011, at Park Avenue and East 188th Street in the Bronx, an officer made remarks to § 87(2)(b) based upon race.

Allegation D – Force: On September 29, 2011, at the 48th Precinct, an officer used physical force against § 87(2)(b)

§ 87(2)(g)

According to § 87(2)(b) after his arrest on September 29, 2011, at Park Avenue and East 188th Street, he was placed in a van comprised of two uniformed officers, one was a Hispanic male and the other was a black male. En route to the 48th Precinct, PO1, who was described as a uniformed 5’5” tall Hispanic male who weighed approximately 290 pounds in his 40’s, told § 87(2)(b) that his mother was an “asshole” and a “whore” and that § 87(2)(b) was a “filthy black.” PO1 was allegedly the passenger officer in the van. Upon arriving at the 48th Precinct, PO1 allegedly placed a foot in front of § 87(2)(b) when he was exiting the van, causing § 87(2)(b) to stumble and hit his face against the van door. § 87(2)(b)’s braces broke as a result.

§ 87(2)(g)

None of the officers from the team who arrested § 87(2)(b) knew who transported him to the 48th Precinct stationhouse. PO Perez said he went to the stationhouse in a separate vehicle to process § 87(2)(b)’s arrest. PO Bautista said he arrived at the precinct approximately a half hour after § 87(2)(b). PO Perez and PO Bautista denied calling § 87(2)(b) a “filthy black” and did not hear any officer call him a “filthy black,” PO Perez and PO Bautista did not tell § 87(2)(b) that his mother was a “whore” and an “asshole.” PO Pyles said that she and PO Reyes transported § 87(2)(b) in a van to the 48th Precinct and when they arrived at the stationhouse, § 87(2)(b) was already there. PO Reyes said that when he placed § 87(2)(b) in the van, § 87(2)(b) was already in the same van. He did not know who transported § 87(2)(b) and § 87(2)(b). PO Dominguez and PO Ramos did not participate in the incident for September 29, 2011.

There were multiple contact attempts made to § 87(2)(b) to show him photos of officers listed on the 48th Precinct roll call. § 87(2)(b) missed one appointment and did not respond to the contact attempts made to him. § 87(2)(g)

It is therefore recommended that **allegations B through D** be closed as **Officer Unidentified**.

Allegation E – Abuse of Authority: On September 29, 2011, at the 48th Precinct, PO Rafael Perez did not obtain medical treatment for § 87(2)(b)

§ 87(2)(g)

According to § 87(2)(b) at the 48th Precinct he requested medical treatment from his arresting officer, PO Perez, but PO Perez allegedly told him there was nothing wrong with him and never provided medical treatment. § 87(2)(b) stated that after his release, he went to § 87(2)(b)

§ 87(2)(b) and received treatment for a § 87(2)(b). He also went to his § 87(2)(b). The CCRB requested § 87(2)(b)'s medical records from § 87(2)(b) and they were unable to locate any information about § 87(2)(b). § 87(2)(b) never provided his § 87(2)(b) information so that his medical record could be subpoenaed. PO Perez testified that § 87(2)(b) never requested medical treatment from him.

§ 87(2)(g) It is therefore recommended that **allegation E** be closed as **unsubstantiated**.

Allegation F – Force: On November 15, 2011, at 443 Cyrus Place in the Bronx, PO Starlin Dominguez used physical force against § 87(2)(b)

Allegation G – Force: On November 15, 2011, at 443 Cyrus Place in the Bronx, PO Hoelmy Ramos used physical force against § 87(2)(b)

Allegation H – Force: On November 15, 2011, at 443 Cyrus Place in the Bronx, officers used physical force against § 87(2)(b)

§ 87(2)(g) § 87(2)(b) alleged that officers apprehended him at 443 Cyrus Place after a female reported that he stole her cell phone. § 87(2)(b) admitted that the female victim described him as wearing red vest and a blue shirt, which is an accurate description of the attire § 87(2)(b) was wearing that day. § 87(2)(b) said that an officer slammed him on the ground, several other officers kicked him in the head approximately four times and punched him in the ribs. § 87(2)(b) allegedly received a head contusion and became unconscious.

According to PO Ramos, he and PO Dominguez, searched the perimeters of 443 Cyrus Place in search of § 87(2)(b). They found him hiding underneath a couch. Other officers also searched the perimeter of the building but PO Ramos did not recall which officers. § 87(2)(b) faked he fainted. PO Ramos and PO Dominguez helped search § 87(2)(b)'s pockets and found the stolen cell phone on him. PO Ramos and PO Dominguez helped handcuff § 87(2)(b). PO Ramos did not recall § 87(2)(b) being thrown on the ground. He stated that § 87(2)(b) was not punched and he did not see any officer kick him.

PO Dominguez stated that he and PO Ramos handcuffed § 87(2)(b). When they attempted to lift him from the ground, § 87(2)(b) pretended to faint. PO Dominguez did not kick or punch § 87(2)(b) and did not see any officer do so. § 87(2)(b) did not resist.

Sgt. Pena, PO Perez and PO Bautista said they were on the roof of 443 Cyrus Place when § 87(2)(b) was apprehended. PO Pyles and PO Reyes were in their vehicle observing § 87(2)(b) but later left the location in fear their vehicle would be recognized. They did not witness § 87(2)(b)'s apprehension.

PO Perez stated he headed to the precinct and fingerprinted § 87(2)(b). PO Perez did not see any injuries on § 87(2)(b). PO Perez took pictures of § 87(2)(b) at the precinct and provided the photos to the CCRB. § 87(2)(b) had no visible injuries (encl.). Additionally, § 87(2)(b)'s arrest photo did not show any apparent injuries.

§ 87(2)(b) said he went to § 87(2)(b) on § 87(2)(b) to seek treatment for his injuries. § 87(2)(a) PHL § 18(6)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **allegations F** though **H** be **unfounded**.

§ 87(4-b) § 87(2)(g)

§ 87(2)(g)

Team: _____

:

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date